

BEFORE THE  
FEDERAL MARITIME COMMISSION

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Docket No. 25-07

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PKDC, LLC,  
*Complainant,*

v.

COSCO SHIPPING LINES CO., LTD.,  
*Respondent.*

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**JOINT STATUS REPORT**

Pursuant to 46 C.F.R. §§ 502.141(h) Complainant PKDC, LLC (“Complainant” or “PKDC”) and Respondent COSCO Shipping Lines Co. Ltd. (“Respondent” or “COSCO”) (PKDC collectively with COSCO, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed schedule.

Complainant filed an Amended Complaint on November 23, 2025. Respondent filed its Verified Answer to the Amended Complaint on December 22, 2025. With the Amended Complaint, there remain approximately 200 shipments alleged by Complainant that are subject to the Commission’s jurisdiction.

The Parties have exchanged updated initial disclosures as required by 46 C.F.R. § 502.141(b). Furthermore, prior to the filing of the Amended Complaint and Answer, the Parties had exchanged some written discovery, though depositions have not yet commenced. The parties anticipate depositions of not more than five witnesses.

Consistent with the Presiding Officer's May 15, 2025 Initial Order in this case, the Parties will be working together to agree on stipulations of fact in order to limit the issues in controversy in this matter.

The Parties propose the below schedule, which provides for a discovery schedule in the 150-day time period set by 46 C.F.R. § 502.141(g), as reset by the Amended Complaint and Answer:

| <b>EVENT</b>                                                                                      | <b>PROPOSED DEADLINE</b> |
|---------------------------------------------------------------------------------------------------|--------------------------|
| Substantial completion of productions of documents and ESI; depositions may begin                 | February 16, 2026        |
| Fact witness depositions may begin                                                                | February 16, 2026        |
| Disclosure of Complainant's expert report(s)                                                      | February 18, 2026        |
| Last day parties may serve supplemental requests                                                  | February 27, 2026        |
| Complete depositions of fact witnesses                                                            | March 6, 2026            |
| Disclosure of Respondent's rebuttal expert report                                                 | March 19, 2026           |
| Expert witness depositions may commence                                                           | March 27, 2026           |
| Close of all discovery                                                                            | April 7, 2026            |
| Complainant's initial brief, proposed findings of fact and appendix                               | May 8, 2026              |
| Respondent's opposition brief, responses to Complainant's proposed findings of fact, and appendix | June 8, 2026             |
| Complainant's reply and responses to Respondent's proposed findings of fact                       | June 22, 2026            |

Dated: January 9, 2026

Respectfully submitted,

*/s/ Jason Kenner*

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